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|     |                                                                                   | <p>involving justiciable questions relating to the rights or obligations of a party.’ . . . ‘The ‘actual controversy’ language in . . . section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties.’ . . . It does not embrace controversies that are ‘conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.’” (Lee v. Silveira (2016) 6 Cal.App.5th 527, 546.)</p> <p>Under its declaratory relief cause of action, U.S. Bank seeks a judicial determination that the Castle loan has not been satisfied, and U.S. Bank is not obligated to release the Castle DOT until the loan has been satisfied. As Golden points out, the declarations sought by U.S. Bank have no relation to any legal rights and duties of Golden.</p> <p>Thus, the Demurrer to the first cause of action for declaratory relief is SUSTAINED with 20 days leave to amend.</p> <p>Moving party to give notice</p> |
| 102 | <p><b>Kohlman vs. Adaptive Behavior Center, Inc</b></p> <p><b>24-01449191</b></p> | <p>Motion to Strike Cross-Complaint</p> <p>Cross-Defendant Adaptive Behavior Center, Inc. (“Cross-Defendant”) moves to strike the Cross-Complaint brought by Cross-Complainant Delight House, Inc. pursuant to Code of Civil Procedure section 877.6(c) and California Rules of Court, rule 3.1382.</p> <p>Plaintiff Irene Kohlman, as an individual and as successor-in-interest and personal representative of the Estate of Donald Kohlman did not oppose the motion.</p> <p>Cross-Complainant/Defendant Delight House, Inc. opposes the motion.</p> <p>Pursuant to Code of Civil Procedure section 877.6(c):<br/> “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-</p>                                                                                                                                                                                  |

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|  | <p>obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) California Rules of Court, rule 3.1382 states:</p> <p>“A motion or application for determination of good faith settlement may include a request to dismiss a pleading or a portion of a pleading. The notice of motion or application for determination of good faith settlement must list each party and pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed.”</p> <p>On March 24, 2026, the Court granted Defendant Adaptive Behavior Center, Inc.’s Application for Good Faith Settlement. (ROA 161.) According to the Settlement Agreement presented to the Court in the Application, the Settlement Agreement at issue in the Application for Good Faith Settlement between Plaintiff and Defendant Adaptive Behavior Center, Inc. relates only to the Complaint filed on December 23, 2024, which is the Complaint brought by Plaintiff in her individual capacity, Case No. 2024 01449191. Accordingly, the Court will GRANT the motion to strike the Cross-Complaint filed in relation to the Complaint filed by Plaintiff in her individual capacity. This Cross-Complaint was filed on 02/24/2025 and is ROA 21.</p> <p>The Court will not, however, strike the Cross-Complaint filed by Delight House, Inc. against Adaptive Behavior for the claims brought by Plaintiff Irene Kohlman, as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman. (ROA 232.)</p> <p>Again, the Court only addressed the Settlement Agreement for those claims brought by Plaintiff in her individual capacity – not those brought as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman. Thus, the Court will not strike ROA 232, which is a cross-complaint related to the Complaint brought by Plaintiff Irene Kohlman, as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman.</p> <p>In sum, the Motion to Strike is GRANTED as to the Cross-Complaint contained in ROA 21 and DENIED as to the Cross-Complaint contained in ROA 232.</p> <p>Moving party to give notice</p> |
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